

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

SHARON MCCLAIN

Plaintiff,

-against-

**THE CITY OF NEW YORK, NEW YORK CITY
POLICE DETECTIVE DORIS LOPEZ OF NARCBX -
SHIELD #487-TAX REG # 942074, NEW YORK CITY
POLICE DETECTIVE JEREMY VEIT OF THE SRG
(FORMERLY OF THE 48th PCT.)-SHIELD #2516-TAX
REG #935920, NYPD POLICE LIEUTENANT SEAN
MCHUGH OF THE 48th NYPD PRECINCT (SRG
UNIT)-TAX REG # 921070, THE TACTICAL TEAM
SERGEANT ON ARREST #B14606905 N/H/A
JOHN/JANE DOE I, OTHER NEW YORK CITY
POLICE OFFICERS ON SAID ARREST WHOSE
NAMES ARE NOT KNOWN AT THIS TIME N/H/A
JOHN/JANE DOE II-IV, AS IT PERTAINS TO THE
INCIDENT THAT AROSE ON JANUARY 29, 2014,
AND NO OTHER DATE,**

Defendant(s).

**Index No. _____-2016
Purchased _____-2016**

**Plaintiff designates BRONX
County as the place of trial**

The basis of the venue is where
the tort arose and where Plaintiff
resides.

SUMMONS

**Plaintiff(s) resides at
SHARON MCCLAIN
2900 Briggs Avenue
Bronx, NY 10458**

2016 FEB 19 PM 2:46
COUNTY CLERK
BRONX COUNTY

RECEIVED

TO THE ABOVE NAMED DEFENDANT(S):

You ARE HEREBY SUMMONED, to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

**Dated: Bayside, New York
February 12, 2016**


JOHN R. DEPAOLA & ASSOCIATES PLLC
Attorneys for Plaintiff
42-40 Bell Boulevard Suite 500
Bayside, New York 11361
(718) 281-4000

Defendants' Addresses:

CORPORATION COUNSEL OF THE CITY OF NEW YORK

100 Church Street
New York, NY 10007

**NEW YORK CITY POLICE DETECTIVE DORIS LOPEZ OF NARCB BX, SHIELD #487, TAX
REG # 942074.**

900 Fteley Avenue
Bronx, New York 10473
(718) 542-0888

**NEW YORK CITY POLICE DETECTIVE JEREMY VEIT OF THE 48TH NYPD PRECINCT,
(SRG UNIT SHIELD #2516, TAX REG # 935920**

450 Cross Bronx Expressway
Bronx, NY 10457
718-293-2999

**NYPD POLICE LIEUTENANT SEAN MCHUGH OF THE 48TH NYPD PRECINCT (OICD) -
TAX REG # 921070**

1 Police Plaza
New York, NY 10038

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

----- X
SHARON MCCLAIN

Plaintiff,

-against-

**THE CITY OF NEW YORK, NEW YORK CITY
POLICE DETECTIVE DORIS LOPEZ OF NARCBX -
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Defendant(s).
----- X

Index No. _____--2016

VERIFIED COMPLAINT

2016 FEB 19 PM 2:44
COUNTY CLERK
BRONX COUNTY

RECEIVED

SHARON MCCLAIN, by her attorneys, JOHN R. DEPAOLA & ASSOCIATES

PLLC, respectfully alleges as follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. At all times mentioned, Plaintiff, **SHARON MCCLAIN** was, and is, a resident of Bronx County, City and State of New York.
2. At all times mentioned, Defendant **CITY OF NEW YORK**, was and is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.

3. On or about the September 30, 2015, and within ninety (90) days after some of the claims herein arose, the Plaintiff served a Notice of Claim in writing sworn to on their behalf upon the Defendant **CITY OF NEW YORK**, by delivering a copy thereof in duplicate to the officer(s) designated to receive such process personally, which Notice of Claim advised the Defendant **CITY OF NEW YORK**, of the nature, place, time and manner in which the claim arose, the items of damage and injuries sustained so far as was then determinable.
4. At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the happening of the event upon which the claims are based.
5. The Plaintiff, **SHARON MCCLAIN** has complied with the request of the municipal Defendants' for an oral examination pursuant to Section 50-H of the General Municipal Law and/or the Public Authorities Law and/or no such request was made within the applicable period.
6. Upon information and belief, at all times mentioned, Defendants, **NEW YORK CITY POLICE DETECTIVE DORIS LOPEZ OF NARCBX - SHIELD #487-TAX REG # 942074, NEW YORK CITY POLICE DETECTIVE JEREMY VEIT OF THE SRG (FORMERLY OF THE 48th PCT.)-SHIELD #2516-TAX REG #935920, NYPD POLICE LIEUTENANT SEAN MCHUGH OF THE 48TH NYPD PRECINCT (SRG UNIT)-TAX REG # 921070, THE TACTICAL TEAM SERGEANT ON ARREST #B14606905 N/H/A JOHN/JANE DOE I, OTHER NEW YORK CITY POLICE OFFICERS ON SAID ARREST WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE II-IV, AS IT**

PERTAINS TO THE INCIDENT THAT AROSE ON JANUARY 29, 2014, AND NO OTHER DATE, and at all times herein were acting in such capacity as its agents, servants and employees.

7. **SERGEANT ON ARREST #B14606905 N/H/A JOHN/JANE DOE I, OTHER NEW YORK CITY POLICE OFFICERS ON SAID ARREST WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE II-IV, AS IT PERTAINS TO THE INCIDENT THAT AROSE ON JANUARY 29, 2014, AND NO OTHER DATE**, and at all times herein were acting in such capacity as its agents, servants and employees.

8. On or about January 29, 2014, at approximately 11:45 A.M. in the vicinity of 2375 Southern Boulevard, Apartment 5D, County of Bronx, State of New York, the Defendants jointly and severally in their capacity as police officers, wrongfully touched, grabbed, handcuffed and seized the Plaintiff, **SHARON MCCLAIN**, in an excessive manner about her person, causing her physical pain and mental suffering, which resulted in Plaintiff having to seek medical attention while in custody, and subsequent to being released, including physical therapy. At no time did the Defendants have legal cause to grab, handcuff seize or touch the Plaintiff, nor did the Plaintiff consent to this illegal touching nor was it privileged by law.

9. On or about January 29, 2014, at approximately 11:45 A.M. in the vicinity of 2375 Southern Boulevard, Apartment 5D, County of Bronx, State of New York, the Defendants jointly and severally in their capacity as police officers, wrongfully touched, grabbed, handcuffed and seized the Plaintiff, **SHARON MCCLAIN**, in an excessive manner about his person, causing her physical pain

and mental suffering. At no time did the Defendants have legal cause to grab, handcuff seize or touch the Plaintiff, nor did the Plaintiff consent to this illegal touching nor was it privileged by law.

AS AND FOR A SECOND CAUSE OF ACTION

10. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "7" with full force and effect as though set forth at length herein.
11. On or about January 29, 2014, at approximately 11:45 A.M. in the vicinity of 2375 Southern Boulevard, Apartment 5D, County of Bronx, State of New York, the Defendants jointly and severally did place Plaintiff, **SHARON MCCLAIN** in imminent fear of physical contact by approaching the Plaintiff with their loaded firearms, outstretched limbs and other objects which they used to physically seize, strike and restrain the Plaintiff. All of the above actions placed the Plaintiff in imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants.

AS AND FOR A THIRD CAUSE OF ACTION

12. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "9" with full force and effect as though set forth at length herein.
13. On or about January 29, 2014, at approximately 11:45 A.M. in the vicinity of 2375 Southern Boulevard, Apartment 5D, County of Bronx, State of New York, jointly and severally without any warrant, order or other legal process and without

any legal right, wrongfully and unlawfully *arrested* the Plaintiff, restrained her and her liberty and then took her into custody to a police station in the County of Bronx, and there charged her with the crimes on Docket No. 2014BX005434.

The Plaintiff was thereafter held in custody over the course of six (21) days until he was released. The Defendants intentionally confined the Plaintiff without her consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of her confinement.

AS AND FOR A FOURTH CAUSE OF ACTION

14. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "11" with full force and effect as though set forth at length herein.
15. On or about January 29, 2014, at approximately 11:45 A.M. in the vicinity of 2375 Southern Boulevard, Apartment 5D, County of Bronx, State of New York, the Defendants jointly and severally without any valid warrant, order or other legal process and without any legal right, wrongfully and unlawfully *imprisoned* the Plaintiff, restrained her and her liberty and then took her into custody and causing her to be incarcerated as a detainee in one of the City of New York's Correctional Facilities. The Plaintiff was thereafter held in custody over the course of six (6) days before she was released. The Defendants intentionally confined the Plaintiff without her consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of her confinement.

AS AND FOR A FIFTH CAUSE OF ACTION

16. Plaintiff incorporates, repeats, and re-alleges all of the allegations contained in Paragraphs "1" through "13" with full force and effect as though set forth at length herein.
17. Upon information and belief, on or about January 29, 2014 and from that time until the dismissal of charges on or about July 7, 2015, which was a favorable termination for the accused before the Honorable Judge presiding at the Criminal Court of the City of New York, Bronx County, Defendants **CITY OF NEW YORK** deliberately and maliciously prosecuted Plaintiff, **SHARON MCCLAIN** an innocent woman without any probable cause whatsoever, by filing or causing a criminal court complaint to be filed in the Criminal Court of the City of New York, Bronx County, for the purpose of falsely accusing the plaintiff of violations of the criminal laws of the State of New York.
18. The Defendants, jointly and severally, including their agents, servants or employees, failed to take reasonable steps to stop the prosecution of the Plaintiff and instead maliciously and deliberately provided false and/or incomplete information to the District Attorney's office to induce prosecution of the Plaintiff, and due to the absence of probable cause malice can be inferred.
19. The commencement of these criminal proceedings under Docket No. 2014BX005434 was malicious and began in malice and without probable cause, so that the proceedings could succeed by the Defendants.
20. As a result of the malicious prosecution, Plaintiff was deprived of her liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust

criminal prosecution. The Plaintiff made multiple court appearances to defend her liberty against these unjust charges.

AS AND FOR A SIXTH CAUSE OF ACTION

21. Plaintiff incorporates, repeats, and re-alleges all of the allegations contained in Paragraphs "1" through "18" with full force and effect as though set forth at length herein.
22. Defendants, **NEW YORK CITY POLICE DETECTIVE DORIS LOPEZ OF NARCBX - SHIELD #487-TAX REG # 942074, NEW YORK CITY POLICE DETECTIVE JEREMY VEIT OF THE SRG (FORMERLY OF THE 48th PCT.)- SHIELD #2516-TAX REG #935920, NYPD POLICE LIEUTENANT SEAN MCHUGH OF THE 48TH NYPD PRECINCT (SRG UNIT)-TAX REG # 921070, THE TACTICAL TEAM SERGEANT ON ARREST #B14606905 N/H/A JOHN/JANE DOE I, OTHER NEW YORK CITY POLICE OFFICERS ON SAID ARREST WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE II-IV, AS IT PERTAINS TO THE INCIDENT THAT AROSE ON JANUARY 29, 2014, AND NO OTHER DATE**, were at all times relevant, duly appointed and acting officers of the City of New York Police Department.
23. At all times mentioned herein, said police officers were acting under color of law, to wit, the statutes, ordinances, regulations, policies, customs and usage of the State of New York and/or City of New York.
24. Plaintiff, **SHARON MCCLAIN** was and is and at all times relevant herein, a citizen of the United States and a resident of Bronx County, in the State of New

York and brings this cause of action pursuant to Article 42, Section 1983 of the United States Code, and Article 42, Section 1988 of the United States Code.

25. The Defendant **CITY OF NEW YORK** is a municipality duly incorporated under the laws of the State of New York.
26. On or about January 29, 2014, the Defendants, armed police, while effectuating the seizure of the Plaintiff, **SHARON MCCLAIN** did search, seize, assault and commit a battery and grab the person of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner. The Plaintiff was falsely arrested, unlawfully imprisoned and maliciously prosecuted without the Defendants possessing probable cause to do so.
27. The above action of the Defendants resulted in the Plaintiff being deprived of the following rights protected under the United States Constitution:
 - a. freedom from assault to her person;
 - b. freedom from battery to her person;
 - c. freedom from illegal search and seizure;
 - d. freedom from false arrest;
 - e. freedom from malicious prosecution;
 - f. freedom from the use of excessive force during the arrest process;
 - g. freedom from unlawful imprisonment; and
 - h. freedom from loss of her liberty.
28. The Defendants subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to

those rights protected under the Fourth and Fourteenth Amendments of the United States Constitution.

29. The direct and proximate result of the Defendants' acts are that the Plaintiff has suffered severe and permanent injuries of a psychological nature. She was forced to endure pain and suffering, all to her detriment. The incident resulted in Plaintiff having to seek medical attention while in custody, and subsequent to being released, including physical therapy

AS AND FOR A SEVENTH CAUSE OF ACTION

30. Plaintiff incorporates, repeats and re-alleges all of the allegations contained in Paragraphs "1" through "27" with full force and effect as though set forth at length herein.
31. Defendant **CITY OF NEW YORK** has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based on probable cause.
32. Defendant **CITY OF NEW YORK** was negligent by failing to implement a policy with its Police Department and instruct police officers who, absent the consent of the Plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest a search warrant, said police officers of the City of New York are not to arrest individuals such as the Plaintiff here where

probable cause is lacking and the use of force should only be reasonable when an individual resists arrest and should not be used where a criminal defendant is not resisting arrest.

33. Defendant **CITY OF NEW YORK** is negligent due to its failure to implement a policy with its Police Department or actively enforce the law, if any of the following are lacking:
- a. probable cause must be present before an individual such as the Plaintiff herein can be arrested;
 - b. excessive force cannot be used against an individual who does not physically resist arrest; and
 - c. an individual who sustains physical injury at the hands of the police during the arrest process should receive prompt medical attention.
34. The foregoing acts, omissions and systemic failures are customs and policies of the Defendant **CITY OF NEW YORK**, which caused the police officers to falsely arrest and imprison, maliciously prosecute, search and seize illegally, commit an assault/battery to her person, and denied her prompt medical attention under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

AS AND FOR AN EIGHTH CAUSE OF ACTION

35. Plaintiff repeats, reiterates, and re-alleges all of the allegations contained in paragraphs "1" through "32" as it set forth at length herein.
36. Defendant **CITY OF NEW YORK** was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Defendants, **NEW YORK CITY POLICE DETECTIVE DORIS LOPEZ OF NARCBX - SHIELD**

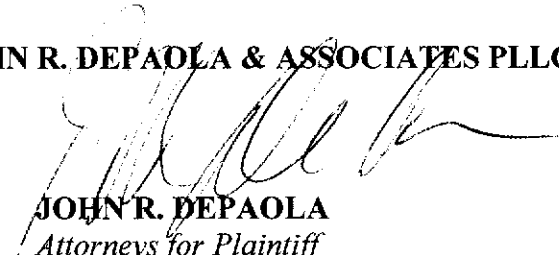
#487-TAX REG # 942074, NEW YORK CITY POLICE DETECTIVE JEREMY VEIT OF THE SRG (FORMERLY OF THE 48th PCT.)-SHIELD #2516-TAX REG #935920, NYPD POLICE LIEUTENANT SEAN MCHUGH OF THE 48TH NYPD PRECINCT (SRG UNIT)-TAX REG # 921070, THE TACTICAL TEAM SERGEANT ON ARREST #B14606905 N/H/A JOHN/JANE DOE I, OTHER NEW YORK CITY POLICE OFFICERS ON SAID ARREST WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE II-IV, AS IT PERTAINS TO THE INCIDENT THAT AROSE ON JANUARY 29, 2014, AND NO OTHER DATE, knew or should have known of the bad disposition of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the Defendant **CITY OF NEW YORK and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.**

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court where otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case and punitive damages.

Dated: Bayside, New York
February 12, 2016

Yours, etc.

JOHN R. DEPAOLA & ASSOCIATES PLLC


BY: JOHN R. DEPAOLA
Attorneys for Plaintiff
42-40 Bell Boulevard Suite 500
Bayside, New York 11361
(718) 281-4000

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
SHARON MCCLAIN

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE :
DETECTIVE DORIS LOPEZ OF NARCBX - SHIELD :
#487-TAX REG # 942074, NEW YORK CITY POLICE :
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OF THE 48th PCT.)-SHIELD #2516-TAX REG #935920, :
NYPD POLICE LIEUTENANT SEAN MCHUGH OF THE :
48th NYPD PRECINCT (SRG UNIT)-TAX REG # 921070, :
THE TACTICAL TEAM SERGEANT ON ARREST :
#B14606905 N/H/A JOHN/JANE DOE I, OTHER NEW :
YORK CITY POLICE OFFICERS ON SAID ARREST :
WHOSE NAMES ARE NOT KNOWN AT THIS TIME :
N/H/A JOHN/JANE DOE II-IV, AS IT PERTAINS TO :
THE INCIDENT THAT AROSE ON JANUARY 29, :
2014, AND NO OTHER DATE,

Defendant(s).
-----X

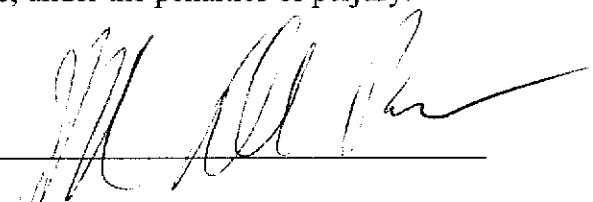
Index No. _____-2016

VERIFICATION

I, **JOHN R. DEPAOLA**, an attorney admitted to practice in the courts of New York State, state that I am a member of the firm of **JOHN R. DEPAOLA & ASSOCIATES PLLC**, the attorneys of record for Plaintiffs in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiff is because Plaintiff resides outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
 February 12, 2016



JOHN R. DEPAOLA

Index No. :

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Defendant(s).

SUMMONS AND VERIFIED COMPLAINT

JOHN R. DEPAOLA & ASSOCIATES PLLC.

BY: JOHN R. DEPAOLA

Attorney for Plaintiff(s)

42-40 Bell Boulevard

Bayside, NY 11361

Tel. (718) 281-4000

To: CORPORATION COUNSEL OF NEW YORK CITY

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.

Dated

Attorney(s) for